

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 12, 2025

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn, Mark Moody, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Moody and Mr. White, item #14 was removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Moody and Mr. White, item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Moody, item #16 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 28, 2025. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Fox & Friends Inc. d/b/a Spice Zone Indian Restaurant, 600 W. 19th St., Cheyenne, WY. There being no comments or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming and repealing Ordinance No. 4571. Reporting for Finance Committee, Mr. Laybourn moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Moody voting “no”. (#4621)

ORDINANCE –3rd READING – Repealing Chapter 12.28, Downtown Graffiti Abatement Pilot Program of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4622)

ORDINANCE –2nd READING – Amending Sections 1.4.3, 1.4.4, and 5.7.2 of the Unified Development Code to amend specific uses allowed as Home Occupations and add clarifying definitions. Mr. Segrave moved to approve on second reading, seconded by Dr. Aldrich. Mr. Segrave moved to amend by substitute dated May 7, 2025, seconded by Mr. White. Motion to amend by substitute failed. Voting “no” – all members of the governing body. Main motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Dr. Rinne voting “no”. During discussion, Dr. Rinne raised a point of order that comments were not germane to the motion. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Moody, Dr. Rinne and Mr. Segrave.

ORDINANCE –1st READING – Appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026 – referred to Committee of the Whole. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Granting an exception to the '201 Agreement' for the owner of the property located south of High Plains Road and west of South Greeley Highway, between Robert Avenue and Dayshia Lane. Mr. Segrave advised there was no recommendation from Public Services Committee. Mr. Segrave moved to adopt, seconded by Mr. Roybal. Dr. Rinne moved to postpone to May 27, 2025, seconded by Mr. Roybal. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Tanya Keller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Dr. Rinne, Mr. Segrave and Mr. White.

[CA] RESOLUTION – Expressing the support of the Governing Body for acceptance of real property from Sloan Lake, LLC. Motion (per Consent Agenda) carried. (#6462)

RESOLUTION – Finding and declaring certain areas within the City of Cheyenne as blight and authorizing the redevelopment thereof in accordance with Wyoming Statute § 15-9-106. Mr. Segrave moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Moody voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Moody and Dr. Rinne. (#6463)

RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current city limits situate in northeast Cheyenne generally located north Dell Range Boulevard, west and east of Ridge Road, and south of Storey Boulevard. Mr. Segrave moved to adopt, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Moody voting “no”. Public comment was made by: Exie Brown. Comments were made by the following

members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons and Mr. Moody. (#6464)

RESOLUTION – Certifying and adopting the Belvoir Ranch Master Plan. Mr. Segrave moved to adopt, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Mark Christensen, AVI P.C. Comments were made by the following members of the governing body: Mr. Laybourn and Mr. Moody. (#6465)

[CA] RESOLUTION – Authorizing the Mayor to execute a Memorandum of Understanding with Cheyenne Frontier Days, Inc., for the provision of public safety services during the annual Frontier Days events – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current city limits situate in east Cheyenne generally located south of Dell Range Boulevard, east of Dry Creek, west of Whitney Road, and north of Charles Street – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Adopting a revised Cheyenne-Laramie County Board of Health fee schedule for various services and inspections – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – To temporarily reduce the monthly parking fee at the Jack C. Spiker parking structure, effective July 1, 2025, through June 30, 2026 – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Moody and Mr. White)

[CA] RESOLUTION – Approving sanitary sewer services, by Outside User Agreement for Sutherland's Fun Family Fitness, LLC, for land at 2611 and 2607 Whitney Road (located east of Whitney Road south of Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Approving sanitary sewer and water services, by Outside User Agreement, for Icerock Wyoming, LLC, for land located east of Clear Creek Parkway south of High Plains Road – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group, LLC, for a feasibility study, benefit-cost analysis, and preliminary design of the Cheyenne Dry Creek Union Pacific Railroad Project (2023-2026 Optional 1% Sales Tax and FEMA BRIC Grant) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites & Trails to set forth the terms and conditions under which the Agency will oversee and disburse legislatively approved funding to the City to provide qualified project management for the High Plains Arboretum Rehabilitation Project (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and Felsburg Holt & Ullevig for the Safe Streets for All Comprehensive Safety Action Plan (2021 Specific Purpose Option Tax Fund and Federal Highway Administration SS4A Grant) – referred to Finance Committee.

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for third party administrator services and group health insurance benefits for city employees (Various City Funds) – referred to Finance Committee.

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees (Various City Funds) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and Advanced Security Technologies LLC, for the purchase of nine (9) Modular Vehicle Barrier Systems and Trailer Packages (General Fund Reserves). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,529,264.00).

[CA] Consideration to purchase between the City of Cheyenne and Ace Equipment & Supply Company, for the purchase of two (2) sets of Rotary Mobile-Column Lifting Systems (Fleet Maintenance Fund & Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$185,878.00).

[CA] Consideration of Bid #S-17-25 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2025 City Overlay #1 Project (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$1,349,869.00). #8169

[CA] Consideration of Bid #S-18-25 for an Agreement between the City of Cheyenne and Miller & Sons Construction Inc. for the 2025 Miscellaneous Concrete Project (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$642,479.86). #8170

[CA] Consideration of Bid #S-21-25 for an Agreement between the City of Cheyenne and T C Solutions, LLC, for the Christensen Road Modifications: Drainage, Signage and Lighting Project (2017 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$566,499.00). #8171

[CA] Consideration of Bid #S-16-25 for an Agreement between the City of Cheyenne and Simon Contractors, for the 2025 Dell Range Overlay project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Winery liquor license application filed with the City Clerk's Office for Wagonhound Wine LLC d/b/a Wagonhound Wine Company, 1610 Capitol Ave., Cheyenne, WY. Mr. Laybourn declared a conflict of interest and vacated council chambers. Mr. Moody moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present in council chambers. Following the announcement of the vote, Mr. Laybourn returned to council chambers. Public comment was made by: Jackson Laybourn. Comment was made by the following member of the governing body: Mayor Collins.

Appointments of Dr. Teresa Simkins-Aris, Marie Hamilton-Morganroth, Amy Simpson and Robert Jacobson to the Mayor’s Council for People with Disabilities. Dr. Aldrich moved to approve, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment). Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins.

No comments were made on the Voucher Report as presented.

An announcement was made that due to the Memorial Day holiday and City offices being closed on Monday, May 26, 2025, the regularly scheduled City Council meeting will instead be held on Tuesday, May 27, 2025 at 6:00 p.m. in the Municipal Building, City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY.

An announcement was made of a Public Hearing to be held May 27, 2025 at 6:00pm at City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the City-initiated annexation of 95 parcels of land totaling roughly 44.56 acres comprised of various tracts of land and rights-of-way situate in northeast Cheyenne generally located north of Dell Range Boulevard, east and west of Ridge Road, and south of Storey Boulevard.

An announcement was made of a Public Hearing to be held May 27, 2025 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Cheyenne Hokkaido LLC d/b/a Cheyenne Hokkaido Ramen, 1720 Capitol Ave., Cheyenne, WY .

The following members of the governing body made comments under Other Business: Dr. Aldrich, Dr. Emmons, Mr. Moody and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:02 pm.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

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